

FEDERAL MARITIME COMMISSION

BDP INTERNATIONAL, INC.
COMPLAINANT,

v.

UNITED TRANSPORT
TANKCONTAINERS, INC.
RESPONDENT.

Docket No. 10-02

Served: June 9, 2010

Order

Now before the Commission is the Initial Decision Approving Settlement Agreement and Granting Request to Dismiss Complaint, entered by the Administrative Law Judge on May 7, 2010, and the subsequently filed Joint Motion to Correct Settlement Agreement filed by the parties on June 1, 2010. No party filed exceptions to the Initial Decision.

For the reasons appearing in the ALJ's Initial Decision, we approve the parties Settlement Agreement. Likewise, we grant the parties' Joint Motion to Correct Settlement Agreement, and the record shall reflect that this case shall be dismissed with prejudice.

THEREFORE, IT IS ORDERED, That the Settlement and Agreement is approved;

IT IS FURTHER ORDERED, That the matter is dismissed with prejudice; and

IT IS FURTHER ORDERED, That this proceeding is discontinued.

By the Commission.

A handwritten signature in black ink, appearing to read 'Rachel E. Dickon', with a stylized, cursive flourish at the end.

Rachel E. Dickon
Assistant Secretary